

STATE OF NEW YORK

10022--A

IN ASSEMBLY

January 27, 2026

Introduced by M. of A. LEE -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring certain health care providers to disclose their disciplinary status to current and new patients

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 230 of the public health law is amended by adding a
2 new subdivision 20 to read as follows:

3 20. (a) As used in this subdivision:

4 (i) "health care representative" means a health care agent designated
5 by an adult pursuant to article twenty-nine-C of this chapter, a health
6 care surrogate selected to make a health care decision on behalf of a
7 patient pursuant to section twenty-nine hundred ninety-four-d of this
8 chapter, a guardian authorized to decide about health care pursuant to
9 article eighty-one of the mental hygiene law, or a guardian appointed
10 pursuant to section seventeen hundred fifty-b of the surrogate's court
11 procedure act; and

12 (ii) "health care" means any treatment, service, or procedure to diag-
13 nose or treat an individual's physical or mental condition.

14 (b) Except as provided by paragraph (e) of this subdivision, the
15 office of professional medical conduct shall require a licensee who has
16 been found to have committed misconduct by or entered into a stipulated
17 settlement with the board for professional medical conduct or found
18 guilty of a crime or liable of an offense in a court of law pursuant to
19 paragraph (c) of this subdivision, or if a summary suspension against
20 the licensee has been signed by the commissioner to disclose the follow-
21 ing to current or new patients or the patient's health care represen-
22 tative on a separate written document: their status with the office of
23 professional medical conduct or from a court of law; the length and
24 expiration date of any penalties associated with such finding of miscon-
25 duct; the cause or causes for disciplinary action stated in the order
26 issued by the board for professional medical conduct or a court of law

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 or in the issuance of an order of summary suspension signed by the
2 commissioner; all practice restrictions placed on the licensee by the
3 board for professional medical conduct or a court of law; the address of
4 the office of professional medical conduct's website; and the office of
5 professional medical conduct's telephone number. This notice shall be
6 provided prior to the patient's first visit, or prior to the patient
7 receiving health care from the licensee following the finding of miscon-
8 duct, entrance into stipulated settlement, or finding of guilt by the
9 board for professional medical conduct or of guilt or liability by a
10 court of law of an offense in any of the circumstances listed in subpar-
11 agraph (i), (ii), (iii), (iv), or (v) of paragraph (c) of this subdivi-
12 sion. A licensee required to provide a disclosure pursuant to this
13 subdivision shall obtain from the patient, or their health care repre-
14 sentative, a separate, signed copy of that disclosure prior to the
15 patient entering the room where the licensee performs the treatment,
16 service, procedure or other direct health care; or in a hospital, ambu-
17 latory care center, or other health care facility prior to the licensee
18 performing any treatment, service, procedure or other direct health
19 care.

20 (c) The licensee shall provide the disclosure under the following
21 circumstances:

22 (i) The licensee has been found to have committed misconduct by or
23 entered into a stipulated settlement with the board for professional
24 medical conduct or found liable or guilty by a court of law after a
25 determination or stipulated settlement in any of the following offenses:

26 (A) the commission of any act of sexual abuse, misconduct, exploita-
27 tion, or relation with a patient or client as defined in article one
28 hundred thirty, article two hundred thirty, or article two hundred
29 sixty-three of the penal law;

30 (B) drug or alcohol abuse directly resulting in harm to patients or
31 the extent that such use impairs the ability of the licensee to practice
32 safely;

33 (C) criminal conviction directly involving harm to patients health; or

34 (D) inappropriate prescribing and a probationary period of three years
35 or more.

36 (ii) The board for professional medical conduct or a court of law
37 ordered a third-party chaperone shall be present when the licensee exam-
38 ines patients as a result of sexual misconduct regardless if the licen-
39 see has been placed on probation.

40 (iii) The licensee has not successfully completed a training program
41 or any associated examinations required by the board for professional
42 medical conduct or a court of law as a condition of probation.

43 (iv) The licensee has been on probation for any offense more than a
44 cumulative total of three years.

45 (v) An order of summary suspension against the licensee has been
46 signed by the commissioner.

47 (d) The licensee shall obtain from each patient, or their health care
48 representative, a signed copy of the disclosure following the disclosure
49 described in paragraph (c) of this subdivision that includes a written
50 explanation of how the patient can find further information on the
51 licensee's actions on the office of professional medical conduct
52 enforcement actions' website.

53 (e) The licensee shall not be required to provide the disclosure prior
54 to performing any treatment, service, procedure, or other direct health
55 care as required by this section, if in the health care professional's
56 judgment, an emergency exists and the person is in immediate need of

1 medical attention, and an attempt to secure consent would result in
2 delay of treatment which would increase the risk to such person's life
3 or health, or if the patient is incapacitated and the patient's health
4 care representative is not reasonably available.

5 (f) Should a patient, or their health care representative, elect to
6 cancel the patient's appointment, treatment, service, procedure, or
7 other direct health care with the licensee upon being provided with the
8 disclosure required by paragraph (c) of this subdivision, neither the
9 patient nor the patient's insurance company shall be charged for the
10 appointment.

11 (g) Any licensee who is unable to provide evidence of compliance with
12 the provisions of this subdivision shall be considered to be in
13 violation of these provisions and shall be subject to the penalties set
14 forth in section two hundred thirty-a of this title. The office of
15 professional medical conduct shall provide any licensee who is alleged
16 to have violated the provisions of this subdivision with the protections
17 set forth in subdivision ten of this section.

18 (h) The commissioner shall promulgate regulations to implement the
19 requirements of this subdivision, and shall issue forms set forth that
20 shall be used to satisfy the written requirement specified in this
21 subdivision which shall also include:

22 (i) provisions that address a health care facility's responsibility to
23 ensure the patient receives care from an appropriate individual or to
24 transfer the patient if the patient refuses care from the licensee
25 required to provide disclosure pursuant to these provisions and another
26 individual is not available at the health care facility to provide care;
27 and

28 (ii) provisions related to enforcing of the requirements of this
29 subdivision.

30 § 2. This act shall take effect January 1, 2027 and shall apply to all
31 orders issued on or after such effective date. Effective immediately,
32 the addition, amendment and/or repeal of any rule or regulation neces-
33 sary for the implementation of this act on its effective date are
34 authorized to be made and completed on or before such effective date.